

Ashok Kumar Upadhyay v. State of U.P.

Allahabad High Court · Division Bench · 5 March 2018 · Writ - C No. 8162 of 2018 · **Writ dismissed; petitioner relegated to Clause 6.5 bill-accuracy remedy.**

HEADNOTE

A writ petition that only challenges the correctness and accuracy of an electricity consumption bill is not maintainable. Clause 6.5 of the Electricity Supply Code, 2005 supplies a statutory alternative remedy before the competent authority, and the High Court will not entertain the writ while that remedy remains available.

FACTUAL SUMMARY

Ashok Kumar Upadhyay invoked the writ jurisdiction of the Allahabad High Court to challenge the correctness and accuracy of a bill for consumption of electrical energy. The State of Uttar Pradesh and officers of the distribution licensee (respondents 3 to 5) were impleaded; counsel for those respondents was heard. The petition sought examination of the disputed bill in writ proceedings and raised no other supply-code grievance.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill-accuracy-alternative-remedy

HOLDING

A consumer who disputes the correctness and accuracy of an electricity consumption bill has a statutory alternative remedy under Clause 6.5 of the Electricity Supply Code, 2005 of approaching the competent authority. A writ petition raising that dispute is not liable to be entertained and stands dismissed, leaving the petitioner free to avail the Clause 6.5 remedy. ¶ 1